

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v. ORIENT OVERSEAS CONTAINER LINE
LIMITED AND OOCL (EUROPE) LIMITED

MOTION FOR TEN ADDITIONAL PAGES

Respondents Orient Overseas Container Line, Ltd. and OOCL (Europe), Ltd. (hereinafter “Respondents” or “OOCL”), through their undersigned counsel, move for a 10-page extension of the current page limit for Respondent’s Exceptions (from 60 pages to 70 pages), to be applied equally to Complainant’s Reply to Exceptions. Federal Maritime Commission Order of May 7, 2026 (Doc. 148). As required by 46 C.F.R. § 502.71, OOCL has conferred with Complainant who states that it opposes the requested relief.

Simply put, the grant of the additional 10 pages will allow the Parties to more fully respond to all the wide-ranging topics of the 198-page Initial Decision. *Compare, e.g., OJ Commerce v. Hamburg Sud* (Initial Decision of only 64 pages). The reasons, elaborated more fully below, are:

1. The Initial Decision in this case is 198 pages, *single-spaced*, so **396** pages in the double-spacing Respondents are required to use.
2. Respondents have identified a large number of serious errors in the Initial Decision, ranging from due process violations, to unsupported findings, to unexplained and

incorrect conclusions of law. Respondents also believe that the record as a whole demonstrates that Respondents did not receive a fair trial before an impartial arbiter.

3. Respondents have worked hard to fit their numerous exceptions into the current – 60-page – limit, but have found that impossible, even excluding parts typically found in exceptions briefs to the FMC. It will be hard going to fit everything necessary within even 70 pages.
4. Without additional pages, Respondents will not have a reasonable ability to respond to the findings and errors in the Presiding Officer, other than to note them briefly to preserve the arguments for judicial review.
5. The Initial Decision, if upheld, will have a substantial, adverse effect on carriers and shippers, because it precludes them from amending long-term contracts to meet changing circumstances. If drawdown amendments can be disallowed whenever one party to a service contract is at an economic disadvantage, carriers will need to act more like NVOCCs and enter only into short-term contracts with minimal MQCs, rather than the one-year or longer contracts that currently dominate the industry. Another adverse effect will be unwillingness by carriers to accord shippers large MQCs. This is a very significant change that should more properly be done in a rulemaking, or at least with a greater degree of industry input, as the Commission did in FMC Docket No. 1966(I), *TCW, Inc. v. Evergreen Shipping Agency (America) Corporation, & Evergreen Line Joint Service Agreement*

6. Given that the Initial Decision penalizes Respondent by an amount of nearly \$50 million (including doubled reparations) before interest, this is a case that deserves full briefing and ventilation before it gets to the federal courts of appeals.

The current deadline for Respondents to file their exceptions is June 23, 2026.

Consequently, Respondents respectfully request expedited consideration of this motion.

For good cause shown, Respondents respectfully request that the foregoing relief be granted.

Dated: June 9, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on the 9th day of June 2026, a true and correct copy of the foregoing Motion was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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CERTIFICATE OF CONFERENCE

On June 9, 2026, the undersigned counsel communicated with Complainant's counsel to ascertain whether Complainant would consent or oppose the foregoing Motion. Complainant opposes same.

/s/ Keith B. Letourneau
Keith B. Letourneau